

Calendar Line 8

Case Name: *Amanda Hulse v. Mercedes-Benz USA, LLC et al.*

Case No.: 25CV462393

Plaintiff seeks an order compelling Defendant to provide a further response to Special Interrogatory, Set One, No. 30.³

Defendant's first argument in opposition is that it complied with 137 of Plaintiff's 138 discovery requests. But noncompliance with a single request is not excused by compliance with all others.

As for the single interrogatory at issue, Plaintiff argues that Defendant's objections are without merit or too general. Although Defendant's objections to SROG No. 30 are boilerplate and asserted to nearly every interrogatory, Defendant wisely has not relied on these objections to avoid answering the interrogatory. Instead, Defendant maintains that it properly responded to Interrogatory No. 30 by incorporating its document production via Code of Civil Procedure Section 2030.230. A responding party may respond to an interrogatory by specifying the writings from which the answer may be derived if (1) the answer would require the preparation of a compilation, abstract, audit, or summary of the documents, and (2) the burden or expense of preparing it would be substantially the same for either party. (Code Civ. Proc., § 2030.300.) These criteria are not met here. SROG No. 30 simply asks Defendant to identify who made the decision not to replace or repurchase Plaintiff's vehicle. Defendant does not need to prepare a summary of any documents to answer the interrogatory - it needs only to provide a person's name, home address, home telephone number, business address, and business telephone number. Requiring Plaintiff to dig through 112 pages of documents is unreasonable and would be more burdensome than simply requiring Defendant, the holder of the information, to provide a response to an inquiry the Court finds unquestionably relevant and discoverable.

The Court notes that Defendant states it is willing to meet and confer regarding the interrogatory at issue, yet in the February 6 correspondence, Defendant's counsel stated that Defendant "[stood] by its response" and would "not agree to supplement it." (Faulk Decl., Ex. C.) The time to be "amenable to meet and confer" was before the filing of motion was necessary.

Plaintiff's motion is GRANTED.

³ In her notice of motion, Plaintiff addresses the timeliness of the motion. A motion to compel further responses must be filed within 45 days of the service of the verified response or verified supplemental response, or the propounding party's right to compel has been waived. (Cal. Civ. Proc. § 2030.300(c).) "Unsworn responses are tantamount to no responses at all." (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) Defendant served unverified responses to Special Interrogatories, Set One, on December 4, 2025, signed by counsel purporting to represent "GENERAL MOTORS LLC." (Migler Decl., Ex. A.) On January 15, 2026, Defendant supplemented its responses. (Faulk Decl. ¶ 5.) On February 6, 2026, in response to Plaintiff's concerns regarding the verifications, Defendant stated: "[v]erifications were served on February 5, 2026." (Faulk Decl., Ex. C.) Defendant does not challenge the timeliness of the motion and based on the above, Plaintiff's motion was filed timely.

Defendant shall provide a further, verified, substantive, code-complainant answer, without objection, to Special Interrogatory Number 30 within 10 days of the date of this hearing.

The Court will prepare the final order.

- oo0oo -